

VCU304254 Lopez, Joe vs. Gallardo, Adalberto Rivera

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-06-30

Motion: Defendants' Motion for Reconsideration

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Re: Lopez, Joe vs. Gallardo, Adalberto Rivera

Case No.: VCU304254

Date: June 30, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Defendants' Motion for Reconsideration

Tentative Ruling: To deny the motion

Facts and Analysis

On April 28, 2026, this Court denied Defendants Baeto, Inc. and Adalberto Rivera Gallardo's motion to set aside granting of summary judgment.

On May 13, 2026, Defendants filed this motion for reconsideration. On June 1, 2026, Defendants filed amended versions of the motion and declaration of counsel.

Code of Civil Procedure section 1008, which states:

"(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown."

Section 1008 requires new or different facts, circumstances or law. *New York Times Co. v. Superior Court* (2005) 135 Cal. App. 4th 206, 212, states:

"Section 1008, subdivision (a) requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide satisfactory explanation for the failure to produce the evidence at an earlier time. [Citation.]"

Further, the *New York Times Co.* court noted "The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial. [Citation.] Case law after the 1992 amendments to Section 1008 as relaxed the definition of 'new or different facts,' but it is still necessary that the party seeking that relief offer some fact or circumstance not previously considered by the court. [Citations.]" (Id. at 212-213.)

Here, the Court's review of the amended declaration indicates no new or different facts are set forth under the standard above. The motion states, as to this requirement:

"Here, as supported by the Declaration of Starr Warson, the Motion to Set Aside Order was not entered and was served via U.S. Mail on April 28, 2026. Therefore, Defendant had not yet become indebted to Plaintiff until the entry of the order."

This argument, supported by the declaration, does not relate to the underlying motion denying the motion to set aside the entry of summary judgment. The Court, finding no new facts or law under the standard set forth above, denies the motion for reconsideration.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.